



MAY 25, 1999

Mr. Harold Creel, Chairman
Federal Maritime Commission
Washington, D.C.

Re: **COSCO** exemption from 30-day filing restrictions

Dear Chairman Creel

Fresh Western International, Inc. is a trading company, primarily selling **internationally**. In the international market, our ocean transportation **services** and costs have a lot to do with gaining sales and export sales are our livelihood. **There** is a surplus of export **space** and carriers providing transport services from the U.S. **and**, in recent years, some foreign and American carriers have been **irresponsible** in their **pricing** and service.

Within the last year-, FWI has decided to **utilize** COSCO for a percentage of exports. **While** not **giving** us the lowest price, COSCO gave us a good combination of **price** and **service level**. Since this **time**, COSCO has proven to be an excellent choice and we consider them to be one of **our main** choices among the many **carriers** we use.

The only **problem** we **have** found is that when we need to **use** COSCO rates for items **not under** service contract agreement, they require 30 days to file that rate (due to FMC imposed **restrictions**), while other **carriers do not**. We are requesting the FMC to **give** COSCO the same rights as **other carriers** regarding prompt rate filing and the elimination of the time-limit restrictions for COSCO.

Thank you for your consideration.

Regards,

A handwritten signature in black ink, appearing to read "Angelo Dovolis".

Angelo Dovolis
President

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